



Norwich City Council Act 1984

CHAPTER xxiii

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ELIZABETH II



1984 CHAPTER xxiii

An Act to re-enact with amendments and to extend certain local enactments in force within the city of Norwich; to confer further powers on the Council of the city of Norwich; to make further provision with regard to the regulation and maintenance of Mousehold Heath and to confer powers on the Mousehold Heath Conservators to conduct the regulation and maintenance thereof; to provide for the operation and control of markets and the environment; and for other purposes.

[31st October 1984]

WHEREAS—

(1) By virtue of the Local Government Act 1972 (hereinafter 1972 c. 70. referred to as “the Act of 1972”) the city of Norwich was constituted on 1st April 1974, comprising the former county borough of Norwich and the area in the former administrative county of Norfolk identified in Ordnance Survey plans as the parish of Thorpe St. Andrew (Det. No. 1):

(2) Numerous local enactments were in force in the said former county borough and by section 262 of the Act of 1972 it

was provided that, subject to certain modifications, certain local statutory provisions should continue to apply to the area, things or persons to which or to whom they applied before that date:

(3) It was further provided by the said section 262 that certain local statutory provisions should cease to have effect at the end of 1984 which date has been postponed to 31st December 1986, by order made by the Secretary of State for the Environment:

(4) It is expedient that certain of the said enactments should be re-enacted with amendments and applied to the whole of the city of Norwich:

(5) It is expedient that the other provisions contained in this Act should be enacted:

(6) The purposes of this Act cannot be effected without the authority of Parliament:

(7) In relation to the promotion of the Bill for this Act the requirements of section 239 of the Act of 1972 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Citation and
commence-
ment.

1.—(1) This Act may be cited as the Norwich City Council Act 1984.

(2) This Act shall come into operation on 1st January 1985.

Interpretation.

1936 c. 49.

1972 c. 70.

2.—(1) In this Act unless the context otherwise requires—

“the Act of 1936” means the Public Health Act 1936;

“the Act of 1972” means the Local Government Act 1972;

“the city” means the city of Norwich;

“the Council” means the City Council of Norwich;

“contravention” includes a failure to comply and
“contravene” shall be construed accordingly;

“owner” has the meaning given by section 343 of the Act
of 1936;

“the river” means the river Wensum.

(2) Any reference in this Act to a Part not otherwise identified is a reference to that Part of this Act.

PART II

MARKETS AND FAIRS

3. In this Part—

Definitions of
markets.

“the Cattle Market” means the market situate at Harford in the city;

“the Fish Market” means the market situate at Rose Lane in the city;

“the Provision Market” means the market within the city the limits whereof are shown within the red lines delineated on the market plan;

“the market plan” means the plan marked “Market Plan” and prepared in triplicate, one copy of which has been deposited in each of the following offices:—

(a) the office of the Clerk of the Parliaments, House of Lords;

(b) the Private Bill Office of the House of Commons;

(c) the principal office of the Council.

4.—(1) Subject to the provisions of this Part the Council may hold markets and fairs within the city.

Power to
maintain
markets and
fairs.

(2) The Cattle Market, the Provision Market and the Fish Market as they exist at the commencement of this Act shall continue vested in the Council and subject to the provisions of this Part the Council shall continue to be empowered to provide, regulate, maintain and enlarge the Cattle Market, the Provision Market and the Fish Market or any alternative market required as a result of a resolution passed in accordance with section 8 (Closure of markets and fairs) of this Act, within the city.

5. Any market carried on by the Council within the city which was not established or acquired under section 50 of the Food Act 1984 or any of the enactments mentioned in subsection (3) of that section shall be deemed to have been acquired by the Council under the said section 50.

Part III of
Food Act 1984
to apply to
markets
undertakings.
1984 c. 30.

6.—(1) During any time in which a fair maintained under section 4 (Power to maintain markets and fairs) above is held on land in the city adjacent to Bell Avenue and Market Avenue the Council may by notice restrict or prohibit the use of Bell Avenue and Market Avenue or any part thereof by vehicles or by vehicles of any class to such extent and subject to such conditions or exceptions as they may consider necessary.

Power to
restrict traffic.

PART II
—cont.

(2) When issuing a notice under this section the Council shall have regard to the existence of alternative routes suitable for traffic which will be affected by the notice.

(3) Before issuing a notice under this section, the Council shall notify the highway authority and the chief officer of police in writing of their intention to issue such a notice.

(4) A notice issued under this section shall not continue in force for a longer period than 14 days from the date thereof.

(5) So long as any notice made under subsection (1) above is in force, a notice stating the effect of the notice, and describing the alternative route or routes available for traffic, shall be kept posted in a conspicuous manner at each end of the part of the road to which the notice relates, and at the points at which it will be necessary for vehicles to diverge from the road.

1984 c. 27.

(6) Where a notice is posted under and in accordance with subsection (5) above it shall be a traffic sign, and the erection and display of the notice by the Council shall be subject to and in conformity with directions given under section 65 (1) of the Road Traffic Regulation Act 1984; and for the purposes of this section the expression "traffic sign" shall have the meaning given to it by section 64 of the Road Traffic Regulation Act 1984.

(7) Nothing in this section shall prevent the British Gas Corporation or the Eastern Electricity Board from obtaining access to any apparatus belonging to or maintainable by them nor prejudice or affect the right of the Corporation or the Board—

(a) to lay, erect, maintain, inspect, repair, renew or remove any such apparatus in, under, upon, over, along or across any highway; or

(b) for the purposes of such laying, erection, maintenance, inspection, repair, renewal or removal, to enter upon or break open that highway.

As to fairs.

7. The Council may by resolution appoint as places for fairs any vacant spaces in their ownership within the city.

Closure of
markets and
fairs.

8.—(1) The Council may, after consultation with such associations as appear to them to represent the interests of those trading or providing entertainments at any market place, market house or place of fair in the ownership of the Council by resolution prescribe the discontinuance of that market place, market house or place of fair as a place for either a market or a fair.

(2) A resolution shall not be passed under subsection (1) above unless the Council, after such consultation as is referred

to in that subsection, have previously provided another market place or market house or place of fair under section 4 (Power to maintain markets and fairs) of this Act in lieu of the one discontinued.

(3) Subsection (2) above shall not apply in respect of the Fish Market.

PART III

RIVER

9.—(1) For the purpose of improving the amenity and recreational facilities of the river within the city the Council may within the city widen, straighten and strengthen the banks of the river. Improvement of river.

(2) The Council shall not under subsection (1) above undertake any work which the Anglian Water Authority have powers to carry out under the Land Drainage Act 1976 or any other improvement which might affect the powers of that authority under the said Act, except with the consent of that authority (which consent shall not be unreasonably withheld) and in accordance with plans and sections approved by that authority, such consent and approval being subject to reasonable conditions as to the design of any work or part thereof and as to the manner in which and the time when the work shall be executed. 1976 c. 70.

(3) Where the river passes under, through or within a distance of 15 metres from any protected work the powers of subsection (1) above shall be exercised subject to the following conditions:—

(a) the Council shall not commence to widen, straighten or strengthen the banks of the river unless 28 days' previous notice shall have been given to the appropriate engineer of the protected party;

(b) all such widening, straightening or strengthening shall be done under the superintendence (if given) and to the reasonable satisfaction of the appropriate engineer of the protected party and shall be done so as not to cause any injury to the protected work and if any injury shall arise to the protected work in consequence of such widening, straightening or strengthening the Council shall make compensation to the protected party in respect of such injury.

(4) In subsection (3) above—

“appropriate engineer of the protected party” means, in the case of the Eastern Electricity Board, an engineer appointed by that board, in the case of the British Gas

PART III
—cont.

Corporation, the engineer of that corporation for the time being responsible for the region in which the protected work is situated, in the case of the British Railways Board, the chief civil engineer of that board for the time being responsible for the area in which the protected work is situated and in the case of the Secretary of State, an engineer appointed by him;

“protected party” means the Eastern Electricity Board, the British Railways Board, the British Gas Corporation or the Secretary of State, as the case may be;

“protected work” means any works, apparatus or submarine cable of the Eastern Electricity Board, any railway or work of the British Railways Board, any works or apparatus of the British Gas Corporation and any road for which the Secretary of State is the highway authority.

(5) (a) The powers of this section shall not be exercised in respect of so much of the river as lies within the jurisdiction of the Great Yarmouth Port and Haven Commissioners without their consent.

(b) The Commissioners’ consent under this subsection shall not be unreasonably withheld and may be granted subject to such reasonable conditions for the prevention of obstruction of or danger to navigation or requiring the Council to remove any materials excavated under the powers of this section as may be necessary.

(6) Any difference arising under this section shall be settled by arbitration.

Building line
by river.

10.—(1) In relation to the river the Council may, within the city, prescribe, at a distance not more than 8 metres from the foot of the bank of the river, a line between which and the river a building shall not be erected or re-erected; and no person shall erect or re-erect a building nearer to the river than the line so prescribed.

(2) Any person who contravenes the provisions of subsection (1) above shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 3 on the standard scale.

(3) In proceedings for an offence under this section it shall be a defence for the person charged to prove that he took all reasonable precautions and exercised all due diligence to avoid the commission of the offence.

(4) The Council shall pay compensation to any person whose interest in any land is injuriously affected by the prescription of a line under this section.

(5) Where in the opinion of the Council a line prescribed by them under this section, or any part of such a line, is no longer necessary or desirable and should be revoked, they may revoke the line or that part of it.

(6) Schedule 1 to this Act has effect in relation to the prescription of a line made under this section and to the revocation of such a line or any part of it.

(7) A person shall not be entitled to compensation under the last foregoing subsection—

(a) unless he made a claim within six months from the date on which the frontage line was prescribed; or

(b) on account of any thing done by him after the date on which a notice of the proposal to prescribe the line was served on him, not being a thing done for the purpose of finishing a building the erection of which had begun before that date, or of carrying out a contract made before that date.

(8) A line prescribed under this section shall be a local land charge.

(9) This section shall not apply to any building erected or re-erected by the Anglian Water Authority or by the Great Yarmouth Port and Haven Commissioners or by the Eastern Electricity Board, to any building erected or re-erected by the British Railways Board for the purposes of their undertaking or to any bridge carrying a highway for which the Secretary of State is the highway authority.

(10) (a) Any dispute arising on a claim for compensation under this section shall be determined by the Lands Tribunal.

(b) For the purposes of any reference to the Lands Tribunal under this section, section 4 of the Land Compensation Act 1961 (costs) has effect with the substitution, for references to the 1961 c. 33. acquiring authority, of references to the Council.

(c) In determining the amount of compensation payable under subsection (10) (a) above, the Lands Tribunal shall take into account any benefit accruing to the claimant by reason of any improvement made or about to be made to the river under section 77 (Improvement of River Wensum) of the Norwich Corporation Act 1920 or section 9 (Improvement of river) of 1920 c. xcv. this Act in relation to which a building line has been prescribed under this section.

11.—(1) The Council may provide, place, lay down, Powers as to maintain, use and have moorings on land owned or leased by moorings, etc. them, or in which they hold an appropriate interest, and on any

PART III
—*cont.*

other land with the consent in writing of the owner and lessee thereof, in the river or on banks adjoining the river.

(2) The Council may recover in respect of any vessel or houseboat using any of the moorings provided by the Council under subsection (1) above or moored to land owned or leased by the Council in or adjoining the river such reasonable charges as they may from time to time prescribe.

(3) The Council may compound with any person with respect to the payment of the charges prescribed under this section.

(4) This section shall not extend to land downstream of Trowse Eye.

(5) The Council shall not exercise the powers of subsection (1) above so as to cause obstruction of navigation in the river except with the consent of the Great Yarmouth Port and Haven Commissioners, which consent shall not be unreasonably withheld, and any difference arising between the Council and the Great Yarmouth Port and Haven Commissioners under this section shall be settled by arbitration.

PART IV

MOUSEHOLD HEATH

Interpretation
of Part.

1884 c. iii.

12. In this Part and in Schedule 2 to this Act—

“the Act of 1884” means the City of Norwich, Mousehold Heath, Scheme Confirmation Act 1884;

“appointing authority” means each of the persons by whom the conservators are appointed in accordance with subsection (2) of section 13 (Constitution of conservators) of this Act;

“the conservators” means the conservators of the heath constituted by the Act of 1884 and this Act;

“the heath” means the tract of waste land the limits whereof are shown within the green line delineated on the heath plan;

“the heath plan” means the plan marked “Heath Plan” and prepared in triplicate, one copy of which has been deposited in each of the following offices:—

(a) the office of the Clerk of the Parliaments, House of Lords;

(b) the Private Bill Office of the House of Commons;

(c) the principal office of the Council.

13.—(1) Notwithstanding the repeal of the Act of 1884 the conservators in office at the commencement of this Act shall continue in office until 30th June 1985, the management of the heath shall continue vested in the conservators and they shall exercise the functions assigned to them by this Act.

PART IV
—cont.
Constitution
of
conservators.

(2) There shall be 12 conservators, appointed as follows:—

(a) 9 by the Council, of whom not less than 7 shall be members of the Council;

(b) three appointed by organisations appearing to the Council to be representative of persons interested in the conservation of the environment in the city:

Provided that so long as the Mousehold Heath Defenders are in existence they shall appoint one of the conservators appointed under this paragraph, and so long as the Norwich Society is in existence it shall appoint one of the conservators appointed under this paragraph.

(3) The incidental provisions set out in Schedule 2 to this Act shall apply in relation to the conservators.

14.—(1) Each appointing authority shall not later than 1st June 1985 and not later than 1st June in each third year thereafter make their respective appointments in accordance with subsection (2) of section 13 (Constitution of conservators) of this Act.

Appointment
of
conservators.

(2) Each conservator so appointed shall (unless he shall previously die or resign)—

(a) continue in office from 1st July next following his appointment for a term of three years;

(b) be eligible for re-appointment:

Provided that where a conservator becomes unable or unfit to discharge his functions because of physical or mental incapacity or neglects to discharge his functions, the authority which appointed him may remove him and appoint another person in his stead for the remainder of his term of office.

15.—(1) A person appointed as a conservator may at any time resign his office by written notice given to the clerk to the conservators.

Casual
vacancies.

(2) Where any person who is a conservator dies or ceases to be a conservator by reason of resignation, the conservators shall forthwith declare his office to be vacant and notify the appointing authority.

(3) A casual vacancy occurring in the office of conservator shall be filled by the appointing authority by whom the conser-

PART IV
—cont.

vator was appointed by the appointment of another person to fill the vacancy.

(4) A person appointed under subsection (3) above to fill any casual vacancy shall hold office until the date upon which the person in whose place he is appointed would have retired pursuant to section 14 (2) (a) above, but he shall be eligible for re-appointment.

Conservators
to act
gratuitously.

16. No conservator shall receive any remuneration nor hold office of profit under this Part.

Validity of
acts done by
unqualified
person.

17. The validity of any proceedings of the conservators shall not be affected by any defect in the appointment of members, or by reason of any member acting while disqualified for membership or by reason of any vacancy in the membership of the conservators.

Power of
conservators
to execute
works.

18.—(1) The conservators shall have a duty to maintain and preserve the heath.

(2) The conservators may for the purpose of this Part—

- (a) execute works of drainage and improvement of the heath;
- (b) ornament the heath, plant trees and enclose them with fences of a character not likely to injure animals turned out on the heath;
- (c) maintain footpaths and provide seats for the public on the heath;
- (d) enclose portions of the heath for periods not exceeding six days at a time for the protection and renewal of the herbage thereon.

(3) The conservators shall not execute any works under paragraph (a), (b) or (c) of subsection (2) above within three metres of any gas main or apparatus of the British Gas Corporation without the previous consent of the British Gas Corporation but such consent shall not be unreasonably withheld.

Access to
heath.

19. The inhabitants of the city shall have free access to and a privilege at all times of playing and attending games and of enjoying recreation upon the heath without payment but subject to such byelaws and regulations as are hereinafter mentioned and with power for the conservators as they consider expedient—

- (1) to set apart any part of the heath for cricket, football or other games;

- (2) to form any cricket, football or other ground and to enclose the same with posts and chains or with open fences so as to prevent cattle straying thereon; and
- (3) to prohibit the playing of cricket, football or other games on any such ground except by such persons as the conservators may prescribe, and to prescribe times when other persons may not use the same for any purpose.

PART IV
—cont.

20.—(1) The conservators shall maintain the heath free from all encroachments except as herein provided and also except that they shall have power to permit temporary enclosures to be made and tents or booths to be erected on such occasions as they shall think fit. Heath to be preserved from encroachment.

(2) It shall not be lawful for any persons other than the conservators without the consent of the conservators in writing to make any temporary or other enclosure of any part of the heath or to put any tents, kiosks, fences, posts, rails or other matter or thing thereon or to make any road or footpath.

(3) Nothing in this section shall prejudice or affect the rights of the British Gas Corporation under paragraphs 1 and 2 of Schedule 4 to the Gas Act 1972. 1972 c. 60.

21.—(1) The conservators may make byelaws under this Part for all or any of the following purposes:— Power to make byelaws.

- (a) for the improvement and management of the heath and the preservation of good order and conduct among persons frequenting it;
- (b) for the prevention of nuisances, annoyances, obstructions and encroachments;
- (c) for the regulation of sports and games;
- (d) for the prevention of vehicles, including bicycles, being parked or driven or horses being exercised on any part of the heath not set apart by the conservators for the purpose;
- (e) for the prevention of the posting of bills or placards on any wall, railing, fence, tree, lamp-post, walk, pavement or seat or elsewhere and the prevention of the removal of any such wall, railing, fence, tree, lamp-post, walk, pavement or seat;
- (f) for the prevention of all acts and things tending to the injury or disfigurement of the heath or the interference with the use thereof by the persons frequenting it for purposes of exercise and recreation.

PART IV
—cont.

(2) Any person who without reasonable excuse contravenes any byelaw made under this section shall be guilty of an offence and shall on summary conviction be liable to a fine not exceeding level 2 on the standard scale.

(3) Subsections (3) to (9) and (11) of section 236 and section 238 of the Act of 1972 (which deal with procedures for and evidence of local authority byelaws) shall apply and have effect with respect to byelaws made by the conservators under this section as they apply to byelaws made by a district council, as if references—

- (a) to the authority by whom the byelaws are made, to a district council or to the local authority were in each case to the conservators;
- (b) to the area to which the byelaws are to apply were to the heath or any part thereof;
- (c) to the proper officer of a district council were to the clerk to the conservators.

Saving as to highways.

22. Nothing in this Part shall be construed as placing under the care of the conservators any highway on or across the heath.

Expenses of conservators.

23.—(1) The Council shall pay yearly to the conservators the requisite sum to enable the conservators to defray the expense of discharging their functions under this Part.

1967 c. 9.

(2) Before 1st January in each year the conservators shall issue to the council a precept for the requisite sum required for the financial year beginning 1st April next following and subsections (4) and (5) of section 12 of the General Rate Act 1967 shall apply to any such precept as though the conservators were a precepting authority for the purposes of that section.

(3) The requisite sum shall be payable half-yearly by equal instalments on 1st July and 1st January in each financial year.

(4) In this section—

“financial year” means a period of 12 months ending on 31st March;

“the requisite sum” means the sum estimated by the conservators to be the sum required to meet their expenditure under this Part in the financial year following the issue of a precept made under subsection (2) above after taking into consideration any money in the hands of the conservators or likely to come into the hands of the conservators during that financial year but that sum shall not in any financial year exceed the product of a rate of 0.5 pence in the

pound or such greater sum as the Council may by resolution approve.

PART IV
—cont.

24.—(1) The conservators shall cause to be kept proper Accounts and accounts of all sums received or paid by them and proper audit. records in relation to those accounts.

(2) The provisions of sections 12 to 25 and 28 to 30 of the Local Government Finance Act 1982 (which deals with local 1982 c. 32. authority accounts and the requirements for the audit thereof) shall with all necessary modifications extend and apply to the conservators as if—

- (a) the conservators were a parish council;
- (b) references in those sections to “the body concerned” were references to the conservators;
- (c) references to “any area to which those accounts relate”, to “the area of that body” and to “the area of a body whose accounts are required to be audited in accordance with this Part of this Act” were references to the city; and
- (d) the reference in section 19 (2) (b) and 20 (4) of the said Act of 1982 to “a member of a local authority” were references to “a conservator”.

PART V

MISCELLANEOUS AND GENERAL

25.—(1) The Council may pay to the sheriff of the city such Sheriff. payment by way of allowance for the performance of an approved duty as the Council may reasonably determine.

(2) An approved duty under subsection (1) above shall be such duty as the Council determine.

26. A Minister of the Crown may cause such local inquiries Local to be held as he may consider necessary for the purpose of any inquiries. of his functions under this Act, and section 250 (2) to (5) of the Act of 1972 shall apply to any such inquiry.

27. Where under this Act any question or dispute is to be Arbitration. referred to or determined by an arbitrator or arbitration the reference shall be to a single arbitrator to be agreed upon between the parties, or, failing agreement, appointed on the application of either party to the dispute after notice in writing to the other by the President of the Institution of Civil Engineers.

PART V

—cont.

Restriction on
right to
prosecute.

28. The written consent of the Director of Public Prosecutions is needed for the laying of an information of an offence created by or under this Act by any person other than a party aggrieved, the council or a police officer.

Liability of
directors, etc.

29.—(1) Where an offence under this Act, or against any byelaw made under this Act, committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, a director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of the offence.

(2) Where the affairs of a body corporate are managed by its members, subsection (1) above shall apply to the acts and defaults of a member in connection with his functions of management as if he were a director of the body corporate.

Penalty for
obstruction.

30. Any person who intentionally obstructs any officer of the Council or of the conservators acting in execution of this Act or of any byelaws made thereunder shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 3 on the standard scale.

Application of
general
provisions of
Act of 1936.

31. The sections of the Act of 1936 mentioned in Schedule 3 to this Act shall have effect as if references therein to that Act included references to this Act.

Transitional
provisions and
repeals.

32.—(1) The Acts specified in column (2) of Part I of Schedule 4 to this Act, the Acts and Orders specified in column (2) of Part II of that Schedule and the confirmation Acts relating to any of those Orders specified in that Part are hereby repealed to the extent specified in column (3) of Part I and column (3) of Part II respectively of that Schedule.

(2) (a) Anything begun under an enactment repealed by this Act may be continued under any enactment in this Act relating to the same matter as if begun under that last-mentioned provision.

(b) Where any period of time specified in, or having effect in relation to, an enactment repealed by this Act is current at the date of the coming into operation under this Act of any provision thereof relating to the same matter, that provision of this Act shall have effect as if it were in force when that period began to run.

(3) References in this Act to things done, left undone, suffered or occurring in the past shall, so far as the context requires for the continuity of operation between an enactment

in force in any area which is repealed by this Act and any enactment in this Act relating to the same matter in the same area be construed as including reference to things done, left undone, suffered or occurring before the coming into operation of that provision of this Act.

PART V
—cont.

(4) Nothing in this section shall affect the operation of the Interpretation Act 1978 or of section 254 of the Act of 1972. 1978 c. 30.

33.—(1) The enactment specified in column (2) of Schedule 5 to this Act shall continue to have effect to the extent specified in column (3) of that Schedule and to that extent section 262 (9) of the Act of 1972 shall not apply to that enactment. Continuance of certain enactment.

(2) Where any enactment referred to in Schedule 4 to this Act is material for the purposes of interpreting any enactment referred to in subsection (1) above the repeal of the first-mentioned enactment shall not affect the interpretation of the other enactment.

Section 10.

SCHEDULES

SCHEDULE 1

BUILDING LINES BY RIVER

1. A line which the Council propose to prescribe shall be shown on a plan to be signed by the proper officer of the Council.

2. The plan shall be deposited at the offices of the Council and may be inspected by any person free of charge at all reasonable hours during a period of one month from the day on which it is so deposited.

3. As soon as the plan has been so deposited the Council shall give notice of the proposal to prescribe the line and of the times and place at which the plan may be inspected, and of the effect of section 10 (Building line by river) of this Act and of paragraph 4 below to every owner, lessee and occupier of land affected.

4. The Council shall consider any objection to the proposed line made within six weeks from the date on which the notices aforesaid were given and may then by resolution prescribe the line.

5. Not later than six weeks after the date on which the Council prescribe the line they shall prepare a plan, duly sealed and authenticated, on which the line shall be shown and shall give notice of the prescribing of the line and of the time and place at which the said plan may be inspected to every owner, lessee and occupier of land affected.

6. If the Council revoke the line, they shall—

- (a) give notice of the revocation to every owner, lessee or occupier of land affected; and
- (b) indicate on the plan prepared in accordance with paragraph 1 above the extent to which the line has been revoked.

Section 13.

SCHEDULE 2

PROVISIONS APPLYING TO THE CONSERVATORS

1. The conservators shall in every year hold not less than two business meetings.

2.—(a) At the first meeting of the conservators held on or after 1st July 1985 and on or after 1st July in each year thereafter the conservators present at the meeting shall appoint one of their number to act as chairman and the chairman shall, unless he shall die, resign or become disqualified, continue in office until the next annual appointment of a chairman.

(b) The chairman shall preside at all meetings at which he is present but in case he shall be absent from any meeting at the time appointed for holding the same, the meeting shall appoint one of the conservators then present to be chairman of such meeting.

3. No business shall be transacted at any meeting unless five conservators at least are present thereat.

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—cont.

4. All questions shall be decided by a majority of the conservators present and voting and in case of an equality of votes the person presiding at the meeting shall have a second or casting vote.

5. Until the contrary be proved a copy of a resolution of the conservators signed and certified by the clerk to the conservators to be a true copy shall be sufficient evidence of the passing of such resolution without further or other proof of the signature of the said clerk or of the said resolution having been duly passed.

6.—(1) Minutes of the proceedings of a meeting of the conservators shall be drawn up and entered in a book kept for that purpose and if approved by a majority of the conservators present and voting shall be signed at the same or next following meeting of the conservators by the person presiding thereat and any minutes purporting to be so signed shall be received in evidence without further proof.

(2) Until the contrary is proved, a meeting of the conservators a minute of whose proceedings has been made and signed in accordance with this paragraph shall be deemed to have been duly convened and held, and all the members present at the meeting shall be deemed to have been duly qualified.

(3) Until the contrary is proved, where a minute of any meeting of the conservators has been made and signed in accordance with sub-paragraph (1) above the meeting shall be deemed to have been duly constituted and to have had power to deal with the matters referred to in the minute.

7. Subject to the provisions of this Schedule the procedure and business of the conservators shall be regulated in such manner as the conservators may from time to time determine.

8.—(1) The conservators shall appoint—

- (a) a clerk;
- (b) a treasurer; and
- (c) such other officers as they may think necessary for the proper discharge of their functions.

(2) A clerk, treasurer or other officer appointed under sub-paragraph 8 (1) above shall hold office on such reasonable terms and conditions including conditions as to remuneration as the conservators think fit.

9. The conservators may provide and maintain such offices as may be necessary for transacting their business and that of their officers.

Section 31.

SCHEDULE 3

SECTIONS OF ACT OF 1936 APPLIED

Section	Marginal note
283 (1)	Notices to be in writing; forms of notices, &c.
285	Service of notices, &c.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

Sections 32 and
33.

SCHEDULE 4

ENACTMENTS REPEALED

PART I

LOCAL ACTS

Chapter (1)	Title or short title (2)	Extent of repeal (3)
12 Geo. 1. c. 15. (1725)	An Act for Repairing the Walls, Gates, and other Publick Works in the City of Norwich, and several Bridges in and near the said City, and for Amending the Roads therein mentioned.	The whole Act.
30 Geo. 3. c. 21. (1790)	An Act for better supplying the City of Norwich and the Parts adjacent, with Water.	The whole Act.
46 Geo. 3. c. lxxvii. (1806)	An Act for better paving, lighting, cleansing, watching, and otherwise improving, the City of Norwich.	The whole Act.
49 Geo. 3. c. lxxxv. (1809)	An Act for building a Bridge over the River Wensum, between the Scite where the Gates called King-Street Gates formerly stood, and Carrow Abbey, to the Hamlet of Thorpe, in the County of the City of Norwich.	The whole Act.
50 Geo. 3. c. xxxix. (1810)	An Act for building a Bridge over the River Wensum, in the City of Norwich, to the Hamlet of Thorpe, in the County of the said City.	The whole Act.

Chapter (1)	Title or short title (2)	Extent of repeal (3)
1 Geo. 4. c. li. (1820)	An Act for building a Bridge over the River Wensum, in the City of Norwich, at or near the Duke's Palace in the said City.	The whole Act.
6 Geo. 4. c. lxxviii. (1825)	An Act for amending and enlarging an Act of His late Majesty, for better paving, lighting, cleansing, watching, and otherwise improving the City of Norwich.	The whole Act.
11 Geo. 4. & 1 Will. 4. c. lxxvii. (1830)	An Act for building a Bridge over the River Wensum, in the Hamlet of Heigham and the Parish of Saint Clement, in the County of the City of Norwich.	The whole Act.
2 & 3 Vict. c. lxxii. (1839)	An Act to repeal so much of an Act passed in the Twelfth Year of the Reign of His Majesty King George the First, for repairing the Walls, Gates, and other public Works in the City of Norwich, and several Bridges in and near the said City, and for amending the Roads therein mentioned, as relates to the Application of the Tolls and Duties thereby authorized to be raised; and to provide a new Mode of Application thereof.	The whole Act.
13 & 14 Vict. c. lxxiii.	The City of Norwich Waterworks Act 1850.	The whole Act.
16 & 17 Vict. c. xxxviii.	The City of Norwich Waterworks (Amendment) Act 1853.	The whole Act.
22 Vict. c. xv.	City of Norwich Waterworks Act 1859.	The whole Act.
23 & 24 Vict. c. xxxiv.	The Norwich Corporation Markets Act 1860.	The whole Act.
25 & 26 Vict. c. iii.	The Norwich Corporation Markets Act 1862.	The whole Act.
30 & 31 Vict. c. cii.	City of Norwich Act 1867.	The whole Act except sections 21 and 57.
39 & 40 Vict. c. lxxx.	The City of Norwich Waterworks Act 1876.	The whole Act.

SCH. 4
—cont.

Chapter (1)	Title or short title (2)	Extent of repeal (3)
42 & 43 Vict. c. cxxv.	Norwich Improvement Act 1879.	The whole Act.
52 & 53 Vict. c. clxxxvii.	Norwich Corporation Act 1889.	The whole Act except paragraphs 1 and 6 to 13 of section 24.
61 & 62 Vict. c. cxlviii.	City of Norwich Waterworks Act 1898.	The whole Act.
2 Edw. 7. c. cliii.	Norwich Corporation (Electricity &c.) Act 1902.	The whole Act.
4 Edw. 7. c. x.	City of Norwich Waterworks Act 1904.	The whole Act.
10 & 11 Geo. 5. c. xcv.	Norwich Corporation Act 1920.	The whole Act except sections 56 to 59, 61 (1) and (3) (A) and 89 (2) to (8).
23 & 24 Geo. 5. c. xxvii.	Norwich Corporation Act 1933.	The whole Act.
14 Geo. 6. c. xliii.	Norwich Extension Act 1950.	The whole Act.
1970 c. xxvii.	Norwich Corporation Act 1970.	The whole Act

PART II

CONFIRMATION ACTS AND ORDERS

Chapter, S.R. & O. and S.I. number (1)	Title or short title (2)	Extent of repeal (3)
14 & 15 Vict. c. 98.	The Public Health Supplemental Act 1851, No. 2.	The Order relating to Norwich.
40 & 41 Vict. c. ccxli.	Local Government Board's Provisional Orders Confirmation (Artizans and Labourers Dwellings) Act 1877.	The Order relating to Norwich.
47 & 48 Vict. c. iii.	City of Norwich, Mousehold Heath, Scheme Confirmation Act 1884.	The whole Act.

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—cont.

Chapter, S.R. & O. and S.I. number (1)	Title or short title (2)	Extent of repeal (3)
50 & 51 Vict. c. clxxix.	Local Government Board's Pro- visional Orders Confirmation (No. 5) Act 1887.	The Order relating to Norwich.
57 & 58 Vict. c. xxii.	Local Government Board's Pro- visional Orders Confirmation (No. 4) Act 1894.	The Order relating to Norwich.
57 & 58 Vict. c. xlvii.	Local Government Board's Pro- visional Orders Confirmation (No. 8) Act 1894.	The Order relating to Norwich.
7 Edw. 7. c. clxiii.	Local Government Board's Pro- visional Orders Confirmation (No. 13) Act 1907.	The Order relating to Norwich.
25 & 26 Geo. 5. c. lxxvi.	Ministry of Health Provisional Order Confirmation (Norwich) Act 1935.	The whole Act.
S.R. & O. 1935/1341.	County of Norfolk Review Order 1935.	That part of the Order which relates to Norwich.
3 & 4 Geo. 6. c. xxvi.	Ministry of Health Provisional Order Confirmation (Norwich) Act 1940.	The whole Act.
9 & 10 Geo. 6. c. lviii.	Ministry of Health Provisional Order Confirmation (Norwich) Act 1946.	The whole Act.
S.I. 1949/802.	Wild Birds Protection (Norwich) Order 1949.	The whole Order.
S.I. 1956/809.	City of Norwich (Food) Order 1956.	The whole Order.
S.I. 1957/535.	Norwich Water Order 1957.	The whole Order.
S.I. 1966/1613.	Norwich (Thorpe Pumping Station) Water Order 1966.	The whole Order.
S.I. 1966/1614.	Norwich (Colney Pumping Station) Water Order 1966.	The whole Order.
S.I. 1966/1615.	Norwich (Caistor St. Edmund Pumping Station) Water Order 1966.	The whole Order.
S.I. 1968/569.	Norwich (Aylsham Pumping Station) Water Order 1968.	The whole Order.

SCH. 4
—cont.

Chapter, S.R. & O. and S.I. number (1)	Title or short title (2)	Extent of repeal (3)
S.I. 1969/714.	Norwich (Ketteringham Water-works) Order 1969.	The whole Order.
S.I. 1970/291.	Norwich Water (Charges) Order 1970.	The whole Order.
S.I.1973/1184.	Norwich (Sheringham Borehole) Water Order 1973.	The whole Order.

Section 33.

SCHEDULE 5
ENACTMENT CONTINUED

Chapter (1)	Enactment (2)	Extent of provisions saved (3)
10&11 Geo. 5. c. xcv.	Norwich Corporation Act 1920.	Sections 56 to 59, 61 (1) and (3) (A).

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